

Calendar Line 1

Case Name: *D. Bowd v. Intuit, Inc.*

Case No.: 26CV491614

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Defendant Intuit, Inc. (“Defendant”) demurs to second and third causes of action in plaintiffs D. Bowd’s (“Plaintiff”) complaint pursuant to Code of Civil Procedure section 430.10 on the ground the claims fail to state facts sufficient to constitute a cause of action. (Notice of Demurrer and Motion to Strike (“Motion”) at p. 2:6-9 [filed: July 8, 2026].) Defendant additionally demurs to the entire complaint on the ground that Plaintiff did not use his full name. (*Ibid.*) Defendant also seeks to strike punitive damages from the complaint. (*Id.* at p. 2:12-13.)

The Motion came on for hearing on September 16, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows:

Factual and Procedural Background¹

According to the allegations of the complaint, Plaintiff is diagnosed with Autism Spectrum Disorder (“ASD”) and Attention Deficit Hyperactivity Disorder (“ADHD”) and receives assistance through the Department of Rehabilitation and the San Andreas Regional Center to assist him with employment-related support services. (*Id.* at ¶ 19.) As a result of the ASD and ADHD, Plaintiff has difficulty understanding instructions, communication, time management, multitasking, organization, etc. (*Id.* at ¶ 23.)

In September 2020, Plaintiff attended an Integrate Advisors neurodiversity job fair and Defendant was also present as an employer company host. (Complaint, ¶ 20.) In November 2020, Plaintiff requested interview accommodations from Defendant and Defendant was aware that Plaintiff was on the autism spectrum. (*Id.* at ¶ 21.)

In March 2021, Plaintiff was hired by Defendant as a Senior Software Engineer through its neurodivergent hiring program. (Complaint, ¶ 22.) In May 2021, Plaintiff began working with a job coach through the California Department of Rehabilitation, who recommended Plaintiff submit an accommodation request to Defendant. (*Id.* at ¶ 24.) In July 2021, Plaintiff submitted a formal request which included seven accommodations and Defendant’s HR department confirmed receipt of the request but failed to formally approve or reject the request in a timely manner. (*Id.* at ¶¶ 26-27.) In August 2021, Plaintiff sent an email indicating he had not heard back regarding his requests and received a response that it was actively being worked on with Plaintiff’s manager. (*Id.* at ¶¶ 29-30.)

Despite Plaintiff’s request, Defendant failed to implement meaningful accommodations and his request was never formally granted. (Complaint, ¶ 32.) After Plaintiff complained, Defendant approved accommodations for a limited time period: 48 days and then 24 days. (*Id.* at ¶ 33.) After these periods expired, there was no follow-up or continued support. (*Ibid.*) Further, the accommodations Defendant claimed to have approved were inadequate and failed to address Plaintiff’s actual needs. (*Id.* at ¶ 34.) Later, in 2024, Defendant issued another accommodation approval with a deadline but failed to provide any other accommodations. (*Id.* at ¶ 37.)

¹ For purposes of efficiency and clarity, the Court provides only a summary of the factual allegations relevant to the Motion.

Throughout his employment, Defendant kept asking Plaintiff for medical documentation rather than engaging in a good faith interactive process and continued to delay until layoffs occurred. (Complaint, ¶ 39.) From 2021 through 2022, Plaintiff received positive performance reviews. (*Id.* at ¶¶ 41-42.)² In May 2023, Plaintiff met with his manager, who expressed concerns about Plaintiff's performance and noted that Plaintiff had no approved accommodations on file. (*Id.* at ¶ 46.) Plaintiff then requested help communicating via neurodiversity training instructors but this request was rejected. (*Id.* at ¶ 48.) In July 2023, Plaintiff received a negative performance review and was denied the entirety of his incentive package (approximately \$150,000). (*Id.* at ¶¶ 49, 51.) Plaintiff requested reconsideration of his performance review and was told to submit an Ethics Investigation complaint. (*Id.* at ¶ 52.) After this, he received only \$10,000 of his incentive pay and later, in 2024, Plaintiff was denied his annual bonus and stock compensation. (*Id.* at ¶¶ 53-54.) Despite the negative performance reviews, Plaintiff received positive peer reviews from his coworkers. (*Id.* at ¶¶ 55-59.)

At the end of 2023, Plaintiff was offered a choice between an Internal Job Search Accommodation or an accommodation for his current role as Senior Software Engineer, with the caveat that any new position would be at a lower rate of pay. (Complaint, ¶ 67.) Plaintiff's manager began canceling one-on-one meetings and he was not invited to meets where his peers were included. (*Id.* at ¶¶ 68-69, 71, 74.) HR did not provide meaningful support to Plaintiff and instead gathered information about Plaintiff's job coach to create an appearance of ongoing accommodations process. (*Id.* at ¶ 70.)

On July 10, 2024, Plaintiff was laid off from his employment shortly after his attorney sent a demand letter to Defendant. (Complaint, ¶¶ 79, 80.)

On April 9, 2026, Plaintiff initiated this action, asserting the following claims:

- 1) Disability Discrimination in Violation of FEHA (Government Code § 12940(a));
- 2) Failure to Provide Reasonable Accommodation in Violation of FEHA (Government Code § 12940(m));
- 3) Failure to Engage in the Good Faith Interactive Process in Violation of FEHA (Government Code § 12940(n));
- 4) Wrongful Termination in Violation of Public Policy (Tameny Claim);
- 5) Retaliation in Violation of FEHA (Government Code § 12940(h)); and
- 6) FAILURE TO PREVENT DISCRIMINATION AND RETALIATION IN VIOLATION OF FEHA (GOVERNMENT CODE § 12940(k)).**

On July 8, 2026, the Defendant filed a joint demurrer and motion to strike directed at the complaint. Plaintiff opposes both motions and Defendant filed a reply.

Demurrer

I. LEGAL STANDARD ON DEMURRER

² The Complaint contains two paragraphs numbered 41. The Court cites both here.

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

II. USE OF “PSEUDONYM”

Defendant asserts that Plaintiff has used a pseudonym in violation of Code of Civil Procedure section 367 because he filed the complaint as “D. Bowd” and did not seek permission from the Court. (Demurrer, p. 10:21-24.)

Pursuant to Code of Civil Procedure section 367, “[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.) The purpose of section 367 is to “protect a defendant from harassment by other claimants on the same demand.” (*The Rossdale Group, LLC v. Walton* (2017) 12 Cal.App.5th 936, 944.) Courts have rejected “the assertion that section 367 ‘requires that a party sue in his or her own name. It does not. Notwithstanding its wording, this provision requires that an action be brought by the real party in interest.’” (*Id.* at p. 945.) “As our Supreme Court noted over a century ago, ‘a person may adopt any name in which to prosecute business, and may sue or be sued in such a name.’” (*Ibid.*)

Here, Plaintiff refers to himself by his first initial and last name. Moreover, the complaint itself indicates Plaintiff’s name is Daniel. (Complaint, ¶¶ 30, 35.) The Court does not find that Plaintiff has used a pseudonym, such as “John Doe” or “Doe,” nor does he run afoul of section 367. Accordingly, the demurrer to the entire complaint on the ground Plaintiff violated section 367 is OVERRULED.

III. SECOND CAUSE OF ACTION

“The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010 (*Scotch*).) A reasonable accommodation is “a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 974 (*Nadaf*).)

Defendant argues that the Complaint concedes that Defendant provided reasonable accommodations that allowed him to sufficiently perform his job duties. (Motion, p. 11:4-6.) Defendant contends that because Plaintiff’s colleagues provided him with positive feedback, Plaintiff was able to do his job with the accommodations Defendant provided. (Motion, p. 11:19-22, citing Complaint, ¶¶ 41-42, 54-58, 107.) Defendant’s reliance on *Hostin v. Ariz. Sch. for the Deaf & Blind* (9th Cir. 2001) 9 F.App’x 757, 759 (*Hostin*) to support this argument is unavailing. First, the Court notes that federal authority may be regarded as persuasive but is not binding on California courts. (*People v. Uribe* (2011) 199 Cal.App.4th 836, 875.) Further, the *Hostin* Court addressed claims for disability discrimination under the Americans with Disabilities Act and Rehabilitation Act, not a claim for failure to provide reasonable accommodations under the FEHA. (*Hostin, supra*, at p. 759.) Finally, *Hostin* was decided at

the summary judgment stage, where the Court considered the parties' evidence. On demurrer, the facts alleged are deemed true. (See *Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.)

In opposition, Plaintiff argues that the complaint sufficiently alleges that Defendant failed to provide accommodations after Plaintiff made several requests. (Opposition, p. 6:1-15, citing Complaint, ¶¶ 27, 32, 33, 34, 36, 38.)

“Under the California Fair Employment and Housing Act (FEHA) (Gov. Code, § 12900 et seq.), an employer has an affirmative duty to make reasonable accommodations . . . , unless doing so would produce undue hardship to its operation.” (*Kaur v. Foster Poultry Farms LLC* (2022) 83 Cal.App.5th 320, 327.) The duty to make reasonable accommodations “is an *ongoing* one and is not satisfied based on a single attempt at a single point in time.” (*Id.* at p. 351 [emphasis original].) Furthermore, the duty “continues when the employee asks for a different accommodation or where the employer is aware that the initial accommodation is failing and further accommodation is needed.” (*Scotch, supra*, 173 Cal.App.4th at p. 1013.)

Here, Plaintiff alleges that he did not receive requested accommodations, and when he *did* receive accommodations, they were for “limited time periods” including 48 days and 24 days and that accommodations were given and then withdrawn without explanation. (Complaint, ¶¶ 33, 36.) Whether the accommodations, and their limited time periods, were reasonable is a question of fact not properly decided on demurrer. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 374.) At the pleading stage, the Court finds these allegations sufficient to state a claim for failure to provide reasonable accommodations.

Accordingly, the demurrer to the second cause of action is OVERRULED.

IV. THIRD CAUSE OF ACTION

FEHA makes it unlawful for an employer “to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known . . . disability.” (*Geflo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 61; Gov. Code, § 12940, subd. (n).)

Defendant contends that the third cause of action is “conclusory” and, additionally, Plaintiff alleges there *was* an interactive process. (Motion, p. 13:6-10.) In opposition, Plaintiff persuasively argues that the obligation to engage in the interactive process is continuous and that the Complaint alleges that Defendant was responsible for the breakdown in that process. (Opposition, p. 8:15-18, 26-27.)

“[The fact that an employer took some steps to work with an employee to identify reasonable accommodations does not absolve the employer of liability . . . If the employer is responsible for a later breakdown in the process, it may be held liable.” (*Nadaf, supra*, 166 Cal.App.4th at p. 985.) The interactive process requires “communication and good-faith exploration of possible accommodations between employers and individual employees with the goal of identifying an accommodation that allows the employee to perform the job effectively.” (*Id.* at p. 984 [internal quotations omitted].)

In this case, the Court finds that Plaintiff's allegations are sufficient to support a claim for failure to engage in the interactive process. Specifically, Plaintiff alleges that his request was never formally approved, he complained about accommodations and then accommodations were approved for limited time periods and there was "no follow-up or continued support after these brief periods expired[.]" (Complaint, ¶¶ 32-33.) Additionally, there are allegations that Defendant did not make Plaintiff aware of tools available to him (Complaint, ¶ 36); Defendant failed to respond to Plaintiff's letter(s) (Complaint, ¶ 38); Defendant would request medical documentation but did not otherwise engage in a good faith interactive process (Complaint, ¶¶ 39, 113). At the pleading stage, these allegations are sufficient.

Based on the foregoing, the demurrer to the third cause of action is OVERRULED.

Motion to Strike

V. LEGAL STANDARD ON MOTION TO STRIKE

A court may strike out any irrelevant, false, or improper matter asserted in a pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, a court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Clauson v. Superior Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

VI. PUNITIVE DAMAGES GENERALLY

"[T]o state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294." (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.) The statutory elements include allegations defendant has been guilty of oppression, fraud, or malice. (*Ibid.*) Malice is conduct intended by defendant to cause injury to plaintiff or despicable conduct which is carried on by defendant with a willful and conscious disregard of the rights or safety of others. (*Ibid.*; Civ. Code, § 3294, subd. (c).) Oppression is despicable conduct that subjects plaintiff to cruel and unjust hardship in conscious disregard of plaintiff's rights. (Civ. Code, § 3294, subd. (c)(2).) Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to defendant with the intention of depriving plaintiff of property or legal rights or otherwise causing injury." (*Id.* at subd. (c)(3).) Simply pleading the terms malice, oppression or fraud by themselves is insufficient to support a claim for punitive damages; a plaintiff must allege sufficient facts supporting that existence of malice, oppression, or fraud. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

VII. DISCUSSION

Defendant seeks to strike the following portions of the Complaint on the ground they do not demonstrate malice, fraud, or oppression to support a request for punitive damages:

- 1) PAGE 19:4-14;
- 2) PAGE 19:15-16;
- 3) PAGE 21:18-22;
- 4) PAGE 21:23;
- 5) PAGE 23:15-21;

- 6) PAGE 23:22;
- 7) PAGE 25:15-23;
- 8) PAGE 25:24;
- 9) PAGE 27:16-22;
- 10) PAGE 27:23;
- 11) PAGE 29:8-15;
- 12) PAGE 29:16; AND
- 13) PAGE 30, PRAYER FOR RELIEF (E).

(See Motion, pp. 15-17.)

Defendant contends that the allegations do not establish intentional wrongdoing and there are no facts that his termination was motivated by malice or any intent to harm. (Motion, p. 15:1-12.) In opposition, Plaintiff asserts that punitive damages are adequately pled, including that Defendant failed to implement requested accommodations, withdrew existing accommodations, denied available assistive technology, failed to respond to requests, criticized Plaintiff for disability-related traits; and terminated Plaintiff. (Opposition, p. 10:18-26, citing Complaint, ¶¶ 26-38, 47, 49, 96, 121.)

Here, the Court does not find that the alleged facts rise to the level of malice, oppression, or fraud necessary to state a claim for punitive damages. (See e.g., *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 54, 63 [finding punitive damages should be stricken even where the plaintiff sufficiently stated a claim for gender discrimination]; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331 [“Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.”][internal quotations omitted].) With that said, motions to strike are disfavored and cannot be used as vehicle to accomplish a “line item veto” of allegations in a pleading. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) Thus, the Court finds it appropriate to strike the following language from each item listed above only:

- 1) PAGE 19:4-7, 11-14: **“DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF’S RIGHTS, AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED” AND “. . . ACTING IN A DELIBERATE, CALLOUS, AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES IN AN AMOUNT SUFFICIENT TO PUNISH AND DETER DEFENDANT INTUIT AND OTHERS FOR SUCH CONDUCT.”**
- 2) PAGE 19:15-16: **“PLAINTIFF PRAYS FOR JUDGMENT, INCLUDING PUNITIVE DAMAGES, AS MORE FULLY SET FORTH BELOW.”**
- 3) PAGE 21:18-22: **“DEFENDANTS COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING**

PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES."

- 4) PAGE 21:23: "INCLUDING PUNITIVE DAMAGES."**
- 5) PAGE 23:15-21: "DEFENDANTS COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED. DEFENDANTS' WILLFUL AVOIDANCE OF THE INTERACTIVE PROCESS AND BAD FAITH IN FAILING TO RESPOND TO OR MEANINGFULLY IMPLEMENT ACCOMMODATIONS DEMONSTRATE DELIBERATE DISREGARD OF PLAINTIFF'S RIGHTS. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES."**
- 6) PAGE 23:22: "INCLUDING PUNITIVE DAMAGES."**
- 7) PAGE 25:15-18, 20-23: "DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS, AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED" AND "... ACTING IN A DELIBERATE, CALLOUS, AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES IN AN AMOUNT SUFFICIENT TO PUNISH DEFENDANT INTUIT IN AN AMOUNT TO BE PROVEN AT TRIAL."**
- 8) PAGE 25:24: "INCLUDING PUNITIVE DAMAGES."**
- 9) PAGE 27:16-18, 20-22: "'DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED DESPICABLY, MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY, WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE AND IN CONSCIOUS DISREGARD OF PLAINTIFF'S RIGHTS" AND "... ACTING IN A DELIBERATE, CALLOUS, AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO PUNITIVE DAMAGES FROM DEFENDANT INTUIT IN AN AMOUNT ACCORDING TO PROOF."**

10) PAGE 27:23: “INCLUDING PUNITIVE DAMAGES.”

11) PAGE 29:8-11, 12-15: “DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED” AND “. . . ACTING IN A DELIBERATE, CALLOUS AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES IN AN AMOUNT SUFFICIENT TO PUNISH AND DETER DEFENDANT INTUIT AND OTHERS FOR SUCH CONDUCT.

12) PAGE 29:16: “INCLUDING PUNITIVE DAMAGES.”

13) PAGE 30:1-2: “FOR PUNITIVE DAMAGES IN AN AMOUNT TO BE DETERMINED AT TRIAL SUFFICIENT TO PUNISH, PENALIZE AND/OR DETER DEFENDANTS AND OTHERS FROM ENGAGING IN THE CONDUCT DESCRIBED HEREIN.”

Accordingly, the motion to strike is **GRANTED, in part**, as stated above in Items 1-13.

Conclusion and Order

The demurrer to the entire Complaint is **OVERRULED**. The demurrer to the second and third causes of action is **OVERRULED**. The motion to strike Items 1-13 is **GRANTED, in part**, as described above.

Calendar Line 2

Case Name: *VELOCITY INVESTMENTS LLC v. MICHAEL D. CORPUZ*

Case No.: 25CV481128

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Michael D. Corpuz demurs to the complaint on the grounds that it fails to allege facts sufficient to state a claim for breach of contract and is uncertain. (Notice of Demurrer at 1:22-25)

Defendant's demurrer came on for hearing on September 16, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

Velocity is a debt buyer as defined in Civil Code section 1788.50(a)(1) and holds California Debt Collector License Number 10229-99. (Complaint ¶¶ 5, 7)

On May 16, 2023, OneMain Financial Group, LLC issued a consumer loan to Corpuz under account number ending in 4619. Corpuz agreed to repay the loan pursuant to the terms of a Loan Agreement and Disclosure Statement. Corpuz breached the agreement by failing to make required payments; his last payment was October 8, 2024. (Complaint ¶¶ 6, 13-16)

The account was charged off on October 31, 2024, with a balance of \$16,368.10. Velocity purchased the debt from OneMain Financial Issuance Trust 2019-2 on January 29, 2025, and now solely owns the debt. Velocity seeks damages of \$16,368.10. (Complaint ¶¶ 8, 17)

Velocity initiated this action on December 1, 2025, alleging a single cause of action for breach of contract.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court